



U.S. Department  
of Transportation

**Pipeline and Hazardous  
Materials Safety  
Administration**

**October 20, 2021**

1200 New Jersey Avenue, SE  
Washington, DC 20590

DOT-SP 21284

**EXPIRATION DATE: 2022-03-31**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: General Motors LLC  
Detroit, MI
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce via motor vehicle of production batteries that have not been proven to be of a type that meets the testing requirements of the UN Manual of Tests and Criteria Section 38.3. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
  - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
  - c. No party status will be granted to this special permit.
  - d. This special permit shall expire not later than March 31, 2022 and may not be renewed.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.185(a)(1) in that the batteries are not of a type proven to meet the requirements of section 38.3 of the UN Manual of Tests and Criteria.
5. BASIS: This special permit is based on the application of General Motors LLC dated August 27, 2021, submitted in accordance with § 107.105 and the public proceeding thereon.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

| Hazardous Materials Description                                      |                           |                       |               |
|----------------------------------------------------------------------|---------------------------|-----------------------|---------------|
| Proper Shipping Name                                                 | Hazard Class/<br>Division | Identification Number | Packing Group |
| Lithium ion batteries <i>including lithium ion polymer batteries</i> | 9                         | UN3480                | N/A           |

7. SAFETY CONTROL MEASURES:a. PACKAGING:

- (1) Each battery pack must have a strong, impact-resistant outer steel casing.
- (2) Each battery pack must be packaged in accordance with 173.185(e) with steel racks and wooden crates used to prevent shifting during transportation.
- (3) A maximum of one battery pack per package is permitted.
- (4) The battery terminals shall be protected from the elements and superimposed weights.

b. OPERATIONAL CONTROLS:

- (1) Only lithium ion battery packs, as described in General Motors LLC's application dated August 27, 2021 and on file with the Office of Hazardous Materials Safety (OHMS) may be offered for transportation under the terms of this special permit.
- (2) The battery packs covered within this special permit remain in GM's possession during transportation.
- (3) The battery packs must be equipped with an effective means of preventing dangerous reverse current flow for the strings or cells that are connected in parallel.
- (4) The battery packs must be protected against external short circuiting.
- (5) Transportation is only authorized from General Motors' Battery Plant to the staging facility, not more than 30 miles away, as specified in the application dated August 27, 2021 and on file with the OHMS.

- c. TESTING:
- (1) Each cell within the battery pack must be of a type tested in accordance with the UN Manual of Tests and Criteria, 6th Revised Edition.
  - (2) Each pack must be of a type that has completed engineering safety tests as specified in the application dated August 27, 2021 and on file with OHMS.
- d. MARKING: Each package must be marked with the special permit number “DOT-SP 21284” in accordance with § 172.301(c).
8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
  - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover  
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Steve H/ae